

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION**

ORDER R5-2022-0050

RESCINDING WASTE DISCHARGE REQUIREMENTS

The California Regional Water Quality Control Board, Central Valley Region (Central Valley Water Board), finds that the Central Valley Water Board adopted the following Orders which are no longer applicable for the reasons shown:

a. 7 POINTS, LLC; 7 POINTS CANNABIS CULTIVATION FACILITY, WASTE DISCHARGE REQUIREMENTS ORDER NO. 85-301, TULARE COUNTY

Waste Discharge Requirements (WDRs) Order 85-301, adopted on 25 October 1985, originally was issued to Exeter Packers, Inc. for a packinghouse at 19535 Avenue 344 in Woodlake (Facility). Since 1985, the Facility has changed ownership multiple times. Most recently, 7 Points, LLC (Discharger) purchased the Facility, and a change of name/ownership was completed for the WDRs in 2019 (Order R5-2019-0020). The Facility is now a cannabis cultivation facility. As a result of the Facility operation changes, the Discharger applied for coverage under Water Quality Order No. 2003-0003- DWQ, *Statewide General Waste Discharge Requirements for Dischargers to Land with a Low Threat to Water Quality* (Low Threat General Order) for the discharge of cooling tower blowdown and dehumidifier condensate. Notice of Applicability 2003-0003-DWQ-0233 and Monitoring and Reporting Program R5- 2022-0811 were issued to the Discharger on 8 April 2022, enrolling the Facility under the Low Threat General Order upon rescission of the WDRs. Since WDRs Order 85-301 no longer reflects the Facility's operation and the Facility was enrolled under the Low Threat General Order, it is appropriate to rescind WDRs Order 85-301.

b. BERNARD TE VELDE, THE 2000 TE VELDE FAMILY TRUST, MICROGY, INC., DONALD J. CAMERON, AND TERRANOVA RANCH, INC., LONE OAK DAIRY #2, FRESNO COUNTY, WASTE DISCHARGE REQUIREMENTS ORDER NO. R5-2008-0001

Waste Discharge Requirements (WDRs) Order R5-2008-0001, adopted on 25 January 2008, prescribes requirements for operation of the Lone Oak #2 Dairy operation located at 14523 West Dinuba Avenue near Kerman in Fresno County. WDRs Order R5-2008-0001 was adopted to address a proposed thermophilic anaerobic digester system consisting of above-ground tanks to be installed as part of the Dairy's waste handling and treatment system. The original proposal was abandoned and in August 2020 an in-ground synthetic double-lined manure-only anaerobic digester was constructed following approval by the Executive Officer. In February 2021 the Dairy was enrolled under the Waste Discharge Requirements General Order for Dairies with Manure Anaerobic Digester or Co-Digester Facilities, Order No. R5-2010-0130. Therefore, it is appropriate to rescind WDRs Order R5-2008-0001.

c. CITY OF REDDING AND CITY OF ANDERSON, SHASTA COUNTY, WASTE DISCHARGE REQUIREMENTS ORDER NO. 5-01-226

Waste Discharge Requirements Order 5-01-226, adopted on 7 September 2001, prescribes requirements for biosolids discharge from City of Redding and City of Anderson, (Discharger) wastewater treatments facilities (Facility). The Discharger previously applied approximately 2,550 dry tons of biosolids onto 290 acres at the City of Redding Municipal Airport from July through October. The Discharger ceased land applying biosolids from the Facility in 2014 with no plans for discharge. Therefore, it is appropriate to rescind Waste Discharge Requirements Order 5-01-226.

d. CITY OF WILLOWS WASTEWATER TREATMENT PLANT, GLENN COUNTY, WASTE DISCHARGE REQUIREMENTS ORDER NO. R5-2016-0090 (NPDES PERMIT CA0078034).

Waste Discharge Requirements Order R5-2016-0090 (NPDES Permit CA0078034), adopted on 6 December 2016, prescribes requirements for City of Willows' (Discharger) Wastewater Treatment Plant (Facility) in Glenn County. Order R5-2016-0090 authorized discharge of tertiary treated domestic wastewater from the City of Willows Wastewater Treatment Plant to Agriculture Drain C, a tributary to Logan Creek, a water of the United States and tributary to the Colusa Basin Drain. On 2 December 2020, the City of Willows submitted a Notice of Intent requesting coverage under *General Order R5-2017-0085-01 for Municipal Wastewater Dischargers That Meet Objectives/Criteria at the Point of Discharge to Surface Water* (Municipal General Order). Based on the information in the Notice of Intent the discharge meets all the required conditions for coverage under the Municipal General Order and a Notice of Applicability (R5-2017-0085-022) was issued by the Central Valley Water Board's Executive Officer with an effective date of **1 May 2022**. Since regulatory coverage for the discharge of treated wastewater to surface water will be provided under the Municipal General Order, Order R5-2016-0090 is no longer necessary and it is appropriate to rescind the Order.

e. CORNELIUS DE JONG DAIRY, INC. DRY HEIFER FEEDLOT, TULARE COUNTY, WASTE DISCHARGE REQUIREMENTS ORDER NO. 97-072

Waste Discharge Requirements (WDRs) Order 97-072, adopted on 25 April 1997, prescribes requirements for operation of the Cornelius de Jong Dairy, Inc. Dry Heifer Feedlot operation (de Jong Feedlot) located approximately six miles north of Visalia near the intersection of Avenue 368 and Road 124 in Tulare County. The facility has operated as a feedlot since at least 1997, providing milk cow replacement stock primarily for dairy operations at the de Jong Dairy Farms Inc. facility located contiguous to the feedlot at 13076 Avenue 368. The feedlot operations were subsequently merged with the dairy operations at the adjacent de Jong Dairy Farms Inc. facility. Correspondence from the Executive Officer issued on 21 October 2020 approves operation of the de Jong feedlot as a component of the de Jong Dairy Farms, Inc., facility for coverage under Reissued Waste Discharge Requirements General Order for Existing Milk Cow Dairies, Order R5-2013-0122. Therefore, it is appropriate to rescind WDRs Order 97-092.

f. DE JONG INVESTMENT GROUP, CLOVERDALE DAIRY LLC, AND MICROGY INC., CLOVERDALE DAIRY, KINGS COUNTY – WASTE DISCHARGE REQUIREMENTS ORDER NO. R5-2008-0041

Waste Discharge Requirements (WDRs) Order R5-2008-0041, adopted on 14 March 2008, prescribes requirements for operation of the Cloverdale Dairy operation at 19142 10 ½ Avenue near Hanford in Kings County. WDRs Order R5-2008-0041 was adopted in response to a proposal to install a thermophilic anaerobic digester system consisting of above-ground tanks as part of the Dairy's waste handling and treatment system. The originally proposed digester system was abandoned and replaced in 2017 with a synthetic double-lined, above-ground wastewater pond that was covered and converted to a manure-only anaerobic digester. In February 2021, the Dairy was enrolled under the Waste Discharge Requirements General Order for Dairies with Manure Anaerobic Digester of Co-Digester Facilities, Order No. R5-2010-0130. Therefore, it is appropriate to rescind WDRs Order R5-2008-0041.

g. DE JONG INVESTMENT GROUP, HOLLANDIA FARMS INC., AND MICROGY INC., HOLLANDIA FARMS DAIRY, KINGS COUNTY, WASTE DISCHARGE REQUIREMENTS ORDER NO. R5-2008-0042

Waste Discharge Requirements (WDRs) Order R5-2008-0042, adopted on 14 March 2008, prescribes requirements for operation of the Hollandia Farms North Dairy operation at 7905 Kansas Avenue near Hanford in Kings County. WDRs Order R5-2008-0042 was adopted to address a proposed thermophilic anaerobic digester system consisting of above-ground tanks to be installed as part of the Dairy's waste handling and treatment system. However, an in-ground synthetic double-lined manure-only anaerobic digester was constructed in December 2020 following approval by the Executive Officer, and in May 2021 the Dairy was enrolled under the Waste Discharge Requirements General Order for Dairies with Manure Anaerobic Digester of Co-Digester Facilities, Order No. R5-2010-0130. Therefore, it is appropriate to rescind WDRs Order R5-2008-0042.

h. JACKSON VALLEY IRRIGATION DISTRICT, LAKE AMADOR RESORT, AMADOR COUNTY, WASTE DISCHARGE REQUIREMENTS ORDER NO. 99-033

Waste Discharge Requirements Order 99-033, adopted on 30 April 1999, prescribes requirements for the Lake Amador Resort in Amador County. On 25 February 2021, the Jackson Valley Irrigation District (Discharger) submitted a request to obtain coverage under the Statewide General Order 2014-0153-DWQ for Small Domestic Wastewater Treatment Systems. Regulation of the discharge was transferred to enrollment under General Order WQ 2014-0153-DWQ-R5374, which was issued by the Executive Officer on 29 April 2022. Therefore, it is appropriate to rescind Order 99-033.

i. LANSING LLC, WREDEN RANCH LLC, AND MICROGY, INC., WREDEN RANCH DAIRY, KINGS COUNTY, WASTE DISCHARGE REQUIREMENTS ORDER NO. R5-2008-0043

Waste Discharge Requirements (WDRs) Order R5-2008-0043, adopted on 14 March 2008, prescribes requirements for operation of the Cloverdale Dairy operation at 8749 Lansing Avenue near Hanford in Kings County. WDRs Order R5-2008-0043 was adopted to address a proposed thermophilic anaerobic digester system consisting of above-ground tanks to be installed as part of the Dairy's waste handling and treatment system. The original proposal was abandoned and in July 2020 an in-ground synthetic double-lined manure-only anaerobic digester was constructed following approval by the Executive Officer. In December 2021, the Dairy was enrolled under the Waste Discharge Requirements General Order for Dairies with Manure Anaerobic Digester or Co-Digester Facilities, Order No. R5-2010-0130. Therefore, it is appropriate to rescind WDRs Order R5-2008-0043.

j. LUCERO OLIVE OIL, LLC, TEHAMA COUNTY, WASTE DISCHARGE REQUIREMENTS ORDER NO. R5-2012-0002

Waste Discharge Requirements Order R5-2012-0002, adopted on 2 February 2012, prescribes requirements for wastewater discharge at Lucero Olive Oil, LLC and Crane Mills, Inc.'s (Discharger) olive mill (Facility) located in Tehama County. The Facility milled olives for oil. Process wastewater was stored onsite in storage tanks, then transported to a 180-acre almond orchard where it was comingled with irrigation water and land applied. The Facility ceased operation in December 2018 with no plans for discharge associated with olive processing at the site. Therefore, it is appropriate to rescind Waste Discharge Requirements Order R5-2012-0002.

k. OLAM WEST COAST, INC. AND T&P FARMS, OLAM WEST COAST WILLIAMS FACILITY, COLUSA COUNTY, WASTE DISCHARGE REQUIREMENTS ORDER NO. R5-2018-0006

Waste Discharge Requirements (WDRs) Order R5-2018-0006, adopted on 1 February 2018, prescribes requirements for the Olam West Coast Williams Facility in Colusa County. Olam West Coast, Inc. (Olam), owner and operator of Olam West Coast Williams Facility, submitted a request to rescind the WDRs. Olam has ceased industrial processing operations in December 2019. A Closure Workplan and Final Closure Report have been submitted and therefore, it is appropriate to rescind Order R5-2018-0006.

l. RIVER PINES PUBLIC UTILITY DISTRICT, RIVER PINES WASTEWATER TREATMENT PLANT, AMADOR COUNTY, WASTE DISCHARGE REQUIREMENTS ORDER NO. 85-291

Waste Discharge Requirements Order 85-291, adopted on 25 October 1985, prescribes requirements for the River Pines Wastewater Treatment Plant in Amador County. On 29 March 2021, the Amador Water Agency (operator) on behalf of River Pines Public Utility

District (Discharger) submitted a request to obtain coverage under the Statewide General Order 2014-0153-DWQ for Small Domestic Wastewater Treatment Systems. Regulation of the discharge was transferred to enrollment under General Order WQ 2014-0153-DWQ-R5362, which was issued by the Executive Officer on 22 March 2022. Therefore, it is appropriate to rescind Order 85-291.

m. SABRE REFINING, INC., FRUITVALE REFINERY, KERN COUNTY, WASTE DISCHARGE REQUIREMENTS ORDER NO. 78-24

Waste Discharge Requirements (WDRs) Order 78-24, adopted on 24 February 1978 and issued to Sabre Refining, Inc., regulates the discharge of up to 6,000 gallons per day of refinery wastewater into unlined sumps that were present at the Fruitvale Refinery (Facility) located at 3121 Standard Street in Kern County. The information sheet for WDRs Order 78-24 states that the waste consists of boiler blowdown, cooling water, and flare pit waste/oil steam condensate. The Fruitvale Refinery is currently owned by M&W Properties of Bakersfield and operated by Las Palmas Oil and Dehydration Inc. Mr. Bryan Porter, Manager of the Fruitvale Refinery, submitted a 1 February 2022 letter requesting that Waste Discharge Requirements (WDRs) Order 78-24 be rescinded. According to the February 2022 letter, there has not been a discharge to land from the Facility for over 20 years. Furthermore, the onsite sumps were reportedly removed over 20 years ago. Therefore, it is appropriate to rescind Waste Discharge Requirements Order 78-24.

IT IS HEREBY ORDERED that the above Orders are rescinded on the date of this order unless otherwise stated above.

I, PATRICK PULUPA, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region on 10 June 2022.

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Water Boards

PATRICK PULUPA, Executive Officer